

Court No. - 37

Case :- WRIT - C No. - 48997 of 2013

Petitioner :- Anil Kumar Singh

Respondent :- M.D. U.P. Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Ved Prakash Pandey, A.K. Upadhyaya

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Ashok Bhushan, J.

Hon'ble Vipin Sinha, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State and learned counsel for respondent nos. 1 and 2.

By this writ petition, the petitioner has prayed for quashing the recovery citation dated 12.9.2012 for recovery of Rs. 3,56,240/- as electricity dues. The petitioner's case is that his electricity was disconnected on 28.10.2009 but electricity bills were being issued and now a citation for recovery has been issued. It is further stated that the petitioner has been detained in civil prison on 9.9.2013. There is no challenge in the writ petition to any electricity bills or any assessment against the petitioner. Recovery citation has been issued for recovery on the basis of recovery certificate issued by Executive Engineer. We see no illegality in the recovery citation dated 12.9.2012 issued to the petitioner.

Learned counsel for the petitioner submits that petitioner now comes with a prayer that he may be given some reasonable time to deposit the entire amount.

Considering the aforesaid, we are of the view that the petitioner will be given some reasonable time to deposit the entire amount. The petitioner may deposit an amount of Rs.1,00,000/- with respondent no.4 and on deposit of the said amount before respondent no.4, the petitioner shall be released from the civil prison. Rest of the amount shall be deposited by the petitioner within a period of three months before respondent no.2 and no further recovery charges shall be realized from the petitioner. The deposit of the aforesaid amount shall be without prejudice to the right of the petitioner to file a complaint against any electricity bill which has been incorrectly issued to him as alleged under Clause 6.5 of the Electricity Supply Code, 2005 or seek such another statutory remedy which is available under the aforesaid Code.

With the aforesaid observation, the writ petition is disposed of. However, we make it clear that in event petitioner does not deposit the amount as directed above, it shall be open for the respondents to proceed against the petitioner in accordance with law.

Order Date :- 11.9.2013

Kuldeep/